

Terms and Conditions

Effective Date: May 2026

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These Terms and Conditions ("Terms") govern your access to and use of ABS and related websites, applications, services, software, features, integrations, support, and infrastructure provided by iCreations / iCreations Digital Group ("ABS", "we", "us", or "our").

By creating an account, accepting an invitation, accessing a workspace, purchasing a plan, using the platform, or clicking "I agree", you agree to be bound by these Terms. If you are using ABS on behalf of a business, organisation, company, partnership, sole proprietorship, branch, shop, studio, pharmacy, or other entity, you represent that you have authority to accept these Terms on its behalf.

If you do not agree to these Terms, you must not access or use ABS.

1. Definitions

For purposes of these Terms:

"ABS" means the multi-tenant business management platform, including its web application, mobile access, APIs, cloud services, AI features, integrations, support services, and related products.

"Customer" or "Tenant" means the business, organisation, or individual that creates, owns, pays for, or controls a workspace on ABS.

"Workspace" means a tenant-specific account environment within ABS where business data, users, branches, settings, subscriptions, reports, files, integrations, and configurations are managed.

"Branch" means a physical or operational business location, shop, studio, pharmacy, outlet, department, or business unit managed within a workspace.

"User" means an individual who accesses ABS, including owners, administrators, employees, contractors, invited team members, or other authorised persons.

"Enterprise License" means a paid one-time enterprise software license that gives the Customer lifetime access to the core ABS software for the selected workspace and plan tier, subject to these Terms, fair use, platform availability, payment obligations, storage limits, and any required Cloud Infrastructure Plan from the second year onward.

"Cloud Infrastructure Plan" means the annual plan payable after the first year for cloud hosting, backups and recovery, updates, security maintenance, AI infrastructure, WhatsApp integrations, technical support, and included cloud storage.

"Customer Data" means business data, records, files, uploads, documents, transaction information, inventory, customer records, employee records, reports, invoices, expenses, payroll information, job or delivery data, communications data, and other content submitted to ABS by or on behalf of a Customer or User.

"Third-Party Services" means external services connected to or used with ABS, including payment processors, WhatsApp providers, email services, SMS providers, AI model providers, hosting providers, accounting tools, analytics tools, or other integrations.

2. Acceptance of Terms

You accept these Terms when you:

1. Create an ABS account;
2. Sign up for a self-service plan;
3. Accept an invitation to join a workspace;

4. Access or use any ABS feature;
5. Purchase, renew, or continue using an Enterprise License or Cloud Infrastructure Plan;
6. Click or tick any checkbox confirming acceptance of these Terms.

If you accept these Terms on behalf of a Customer, you confirm that you are authorised to bind that Customer. If you are not authorised, you must not use ABS on behalf of that Customer.

3. Eligibility and Authority

You may use ABS only if you are legally capable of entering into a binding agreement under applicable law. You must provide accurate account, business, billing, and contact information.

If you use ABS for a company, business, or organisation, you confirm that:

1. You have authority to create or manage the workspace;
2. You have authority to invite Users;
3. You are responsible for activity under the workspace;
4. You will ensure all Users comply with these Terms;
5. You will not misrepresent your business identity, ownership, or authority.

We may request verification of identity, business registration, ownership, tax information, payment authority, or other relevant details where reasonably necessary.

4. Account, Tenant, and Workspace

Each Customer may have one or more workspaces, depending on the plan and configuration approved by ABS. A workspace may include branches, users, business settings, customer data, files, automations, integrations, reports, and other platform features.

The Customer is responsible for:

1. Maintaining accurate workspace information;
2. Managing Users and access permissions;
3. Protecting login credentials;
4. Reviewing activities performed by Users;
5. Ensuring lawful use of Customer Data;
6. Configuring integrations correctly;
7. Ensuring business records are accurate and complete.

ABS may rely on instructions from the workspace owner, billing contact, super administrator, or other authorised administrator unless we have reason to believe those instructions are unauthorised or unlawful.

5. Invited Tenants and Invited Users

A User may be invited to join an existing workspace by a workspace owner, administrator, employer, client, or other authorised person. Invited Users must accept these Terms before accessing the workspace.

Invited Users understand that:

1. Their access is controlled by the Customer or workspace administrator;
2. The Customer may view, manage, restrict, export, or delete their activity and business data within the workspace;
3. ABS may process their information as necessary to provide the service;
4. Their access may be suspended or removed by the Customer or ABS;

5. They must use ABS only for authorised business purposes.

Recommended checkbox wording for invited tenant signup:

I have read and agree to the ABS Terms and Conditions and Privacy Policy. I understand that I am joining a workspace owned or managed by the inviting business, and that my access and activity within that workspace may be managed by its authorised administrators.

6. Platform Features

ABS is a business management platform that may include, depending on your plan, configuration, and availability:

1. Mobile and desktop access;
2. POS and sales management;
3. Inventory and stock tracking;
4. CRM, customers, and leads;
5. Invoicing, receipts, and payment tracking;
6. Accounting, expenses, and financial summaries;
7. Payroll and employee management;
8. AI reports, insights, and smart analytics;
9. WhatsApp automation and messaging workflows;
10. Email, SMS, and communication tools;
11. Multi-role team access and permissions;
12. Delivery, job, and order tracking;
13. Shops, studios, pharmacies, branches, and multi-location management;
14. Cloud storage, uploads, and document management;
15. Integrations with third-party tools and service providers;
16. Technical support, updates, maintenance, and security improvements.

Some features may be provided as beta, experimental, limited, usage-based, region-specific, integration-dependent, or subject to separate terms.

7. Enterprise License, Pricing, and Lifetime Access

ABS may offer one-time Enterprise License plans. A one-time Enterprise License gives the Customer lifetime access to the core ABS software for the selected workspace and plan tier, subject to these Terms.

“Lifetime access” means access for the commercially reasonable lifetime of the ABS platform and the applicable workspace, provided that:

1. The Customer has fully paid the applicable one-time license fee;
2. The Customer complies with these Terms;
3. The Customer remains within the applicable user, branch, storage, and fair use limits;
4. Required annual Cloud Infrastructure Plan fees are paid from the second year onward;
5. The platform remains available and is not discontinued, replaced, suspended, or terminated in accordance with these Terms;
6. The Customer does not claim ownership of ABS source code, intellectual property, infrastructure, algorithms, AI systems, designs, trademarks, or platform technology.

The Enterprise License is a license to use ABS. It is not a sale of the ABS software, source code, intellectual property, brand, architecture, databases, AI models, infrastructure, or proprietary technology.

8. Enterprise Plan Tiers

Unless otherwise agreed in writing, the following Enterprise License plans apply.

8.1 ABS Enterprise Starter

One-time license fee: GHS 10,000

Included: 1 User, 1 Branch, 20GB cloud storage, full enterprise features for the selected workspace.

After the first year, the Customer must pay an annual Cloud Infrastructure Plan of GHS 600 per year, which includes secure cloud hosting, backups and recovery, updates, security maintenance, AI infrastructure, WhatsApp integrations, technical support, and 20GB storage.

8.2 ABS Enterprise Business

One-time license fee: GHS 20,000

Included: Up to 5 Users, up to 5 Branches, 50GB cloud storage, full enterprise features for the selected workspace.

After the first year, the Customer must pay an annual Cloud Infrastructure Plan of GHS 1,200 per year, which includes secure cloud hosting, backups and recovery, updates, security maintenance, AI infrastructure, WhatsApp integrations, technical support, and 50GB storage.

The GHS 20,000 Business plan provides lifetime access to the core ABS software for the selected workspace and Business tier, but it does not include unlimited cloud hosting, unlimited storage, unlimited support, unlimited AI usage, unlimited WhatsApp usage, ownership of source code, or perpetual free maintenance. Continued use of hosted cloud services after the first year requires payment of the annual Cloud Infrastructure Plan.

8.3 ABS Enterprise Pro

One-time license fee: GHS 30,000

Included: Up to 10 Users, up to 10 Branches, 100GB cloud storage, full enterprise features for the selected workspace.

After the first year, the Customer must pay an annual Cloud Infrastructure Plan of GHS 2,400 per year, which includes secure cloud hosting, backups and recovery, updates, security maintenance, AI infrastructure, WhatsApp integrations, priority technical support, and 100GB storage.

9. Annual Cloud Infrastructure Plan

The first year of cloud infrastructure is included with the Enterprise License unless otherwise stated in writing. From the second year onward, the applicable annual Cloud Infrastructure Plan must be paid to continue hosted access to ABS cloud services.

The Cloud Infrastructure Plan may include:

1. Secure cloud hosting;
2. Backups and recovery systems;
3. Platform updates;
4. Security maintenance;
5. AI infrastructure;
6. WhatsApp integration infrastructure;
7. Technical support;

8. Included cloud storage for the selected plan.

Failure to pay the Cloud Infrastructure Plan may result in reduced functionality, suspension of hosted services, restricted access, loss of integrations, or termination in accordance with these Terms.

The Cloud Infrastructure Plan does not guarantee uninterrupted service, unlimited support, unlimited usage, unlimited storage, or protection against all data loss or security incidents.

10. Storage and Fair Use

Each plan includes a stated amount of cloud storage. Storage may include uploaded files, images, documents, reports, attachments, exports, backups, generated content, logs, and other stored data.

If a Customer exceeds the included storage limit, ABS may:

1. Notify the Customer;
2. Require cleanup or deletion of unnecessary files;
3. Offer additional storage at applicable rates;
4. Restrict further uploads;
5. Reduce performance of storage-heavy features;
6. Suspend storage-related functionality if the excess usage is not resolved.

ABS may apply fair use limits to protect platform performance, security, and availability. Fair use limits may apply to AI requests, WhatsApp automation, email or SMS activity, file uploads, API calls, reports, exports, background jobs, branches, users, transactions, and integrations.

You must not use ABS in a way that places unreasonable load on the platform, attempts to bypass usage limits, resells access without permission, or interferes with other customers.

11. Payment Terms

Fees must be paid in Ghana Cedis (GHS) or another currency accepted by ABS. Payment may be made through approved payment channels, bank transfer, mobile money, card payment, invoice, or other methods we support.

Unless otherwise stated:

1. One-time Enterprise License fees are due before activation or full deployment;
2. Annual Cloud Infrastructure Plan fees are due yearly in advance after the first year;
3. Additional services, customisations, storage, integrations, training, migration, or support may attract separate charges;
4. Late payments may lead to suspension or restricted access;
5. ABS may charge reasonable reactivation or recovery fees where applicable.

You are responsible for ensuring payment details are accurate and authorised.

12. Refunds

Unless required by law or expressly agreed in writing, one-time Enterprise License fees, setup fees, implementation fees, training fees, migration fees, custom development fees, and annual Cloud Infrastructure Plan fees are non-refundable once paid.

ABS may, at its discretion, provide credits, partial refunds, service extensions, or alternative remedies in specific cases. Any such remedy does not create a general obligation to provide refunds in other cases.

13. Taxes

Fees may be exclusive of applicable taxes, levies, duties, withholding, bank charges, mobile money charges, card processing fees, or government-imposed charges unless expressly stated otherwise.

The Customer is responsible for all applicable taxes and charges relating to the purchase and use of ABS, except taxes based on ABS's own income.

14. Users, Roles, and Permissions

ABS may allow Customers to create roles and permissions for owners, administrators, managers, employees, accountants, cashiers, sales staff, delivery staff, and other Users.

The Customer is responsible for:

1. Assigning appropriate access levels;
2. Removing access when Users leave the business;
3. Reviewing sensitive permissions;
4. Monitoring User activity;
5. Preventing unauthorised access;
6. Ensuring Users are trained to use the system properly.

ABS is not responsible for losses caused by incorrect permissions, unauthorised internal activity, shared passwords, weak passwords, compromised accounts, or failure to remove inactive Users.

15. Customer Data Ownership

As between ABS and the Customer, the Customer owns Customer Data. ABS does not claim ownership of Customer Data.

The Customer grants ABS a limited right to host, process, transmit, store, back up, analyse, display, and use Customer Data only as necessary to:

1. Provide and improve ABS;
2. Operate platform features;
3. Generate reports and analytics;
4. Support AI insights and automations;
5. Provide customer support;
6. Maintain security and backups;
7. Comply with law;
8. Enforce these Terms.

The Customer is responsible for the legality, accuracy, quality, integrity, and rights relating to Customer Data.

16. Privacy

Our collection and use of personal data is described in our Privacy Policy, available at: [absghana/privacypolicy](https://absghana.com/privacypolicy).

By using ABS, you agree that ABS may process personal data in accordance with the Privacy Policy and applicable data protection laws.

Customers are responsible for providing legally required notices to their own customers, employees, vendors, leads, and other data subjects where Customer Data includes personal information.

17. Acceptable Use

You must not use ABS to:

1. Violate any law, regulation, court order, or third-party right;
2. Upload unlawful, fraudulent, harmful, defamatory, obscene, discriminatory, or abusive content;

3. Send spam, unsolicited messages, scams, phishing, or deceptive communications;
4. Misuse WhatsApp, email, SMS, or payment integrations;
5. Upload malware, viruses, or harmful code;
6. Attempt to gain unauthorised access to ABS or another workspace;
7. Reverse engineer, copy, scrape, decompile, or attempt to extract source code, models, architecture, or proprietary systems;
8. Interfere with platform security, rate limits, monitoring, or infrastructure;
9. Resell, sublicense, or commercially exploit ABS without written permission;
10. Use ABS to process data you do not have permission to process;
11. Use AI features to generate unlawful, misleading, discriminatory, or harmful content;
12. Use ABS for illegal financial activity, money laundering, fraud, or unauthorised payment processing.

ABS may investigate suspected misuse and may suspend or terminate access where necessary.

18. AI Features and Disclaimers

ABS may provide AI-powered reports, insights, summaries, recommendations, forecasts, chat features, document interpretation, business suggestions, automation assistance, and analytics.

AI outputs may be inaccurate, incomplete, outdated, biased, or unsuitable for your specific business circumstances. AI outputs are provided for assistance only and should not be treated as professional advice, financial advice, legal advice, tax advice, accounting advice, medical advice, employment advice, or a substitute for human judgment.

You are responsible for reviewing AI outputs before relying on them or sharing them with others.

ABS may use third-party AI providers or infrastructure to provide AI features. Where Customers provide their own API keys for AI services, the Customer is responsible for:

1. The third-party provider's fees;
2. API key security;
3. Usage limits;
4. Compliance with the provider's terms;
5. Outputs generated through that provider;
6. Any suspension or failure of that provider's service.

ABS does not guarantee that AI features will always be available, accurate, or suitable for any particular purpose.

19. WhatsApp, Email, SMS, and Payment Integrations

ABS may support integrations with WhatsApp, email, SMS, payment processors, banks, mobile money providers, card processors, and related communication or financial services.

These integrations may depend on third-party providers, network availability, approval processes, API limits, message templates, business verification, payment settlement rules, and third-party terms.

The Customer is responsible for:

1. Obtaining required consents before sending messages;
2. Complying with anti-spam, privacy, marketing, and communication laws;
3. Ensuring message content is lawful and accurate;
4. Maintaining payment account compliance;
5. Verifying payment status and reconciliation;

6. Handling failed, delayed, reversed, disputed, or fraudulent payments;
7. Paying third-party fees where applicable.

ABS is not responsible for third-party message delivery failures, payment delays, chargebacks, account restrictions, provider outages, rejected templates, or policy enforcement by WhatsApp, email, SMS, or payment providers.

20. POS, Inventory, Accounting, Payroll, and Business Records

ABS may include tools for POS, inventory, invoicing, accounting, expenses, payroll, employee records, reports, analytics, job tracking, delivery tracking, and branch management.

These tools are provided to help Customers manage business operations. They do not replace professional accounting, tax, legal, audit, payroll, employment, or financial advice.

The Customer is responsible for:

1. Entering accurate data;
2. Verifying sales, expenses, stock levels, payroll, taxes, invoices, reports, and reconciliations;
3. Maintaining legally required business records;
4. Complying with tax, employment, accounting, and industry-specific obligations;
5. Reviewing reports before making business decisions;
6. Correcting errors in data entry, setup, permissions, or configuration.

ABS is not responsible for losses caused by inaccurate records, incorrect settings, missing entries, user mistakes, misclassification, stock discrepancies, payroll errors, tax errors, or reliance on unverified reports.

21. Backups, Availability, Support, and Maintenance

ABS uses reasonable measures to provide secure hosting, backups, updates, maintenance, and support according to the applicable plan. However, ABS does not guarantee uninterrupted, error-free, or always-available service.

The platform may be unavailable or degraded due to:

1. Scheduled maintenance;
2. Emergency maintenance;
3. Internet or network failures;
4. Third-party provider outages;
5. Cloud infrastructure issues;
6. Security incidents;
7. Software bugs;
8. Force majeure events;
9. Customer misuse or configuration errors.

ABS may update, modify, suspend, replace, or discontinue features for security, performance, compliance, product improvement, or business reasons. We will use reasonable efforts to avoid unnecessary disruption.

Support is provided according to the applicable plan and may be delivered through phone, email, WhatsApp, chat, remote session, ticketing system, or other channels. Priority support applies only where expressly included in the Customer's plan.

22. Security

ABS uses reasonable technical and organisational measures designed to protect the platform and Customer Data. However, no system is completely secure.

Customers and Users are responsible for:

1. Using strong passwords;
2. Protecting login credentials;
3. Enabling available security features;
4. Restricting administrator access;
5. Reviewing user roles;
6. Keeping devices secure;
7. Reporting suspected compromise promptly;
8. Avoiding suspicious links, files, or integrations.

ABS may take emergency security actions, including suspending accounts, disabling integrations, resetting credentials, restricting access, or blocking activity where necessary to protect the platform, Customer Data, Users, or third parties.

23. Suspension and Termination

ABS may suspend or terminate access to ABS, a workspace, or specific features if:

1. Fees are unpaid;
2. The Customer or User breaches these Terms;
3. Use creates security, legal, operational, or reputational risk;
4. ABS suspects fraud, abuse, unauthorised access, or illegal activity;
5. Required verification is not completed;
6. Continued access may harm ABS, other Customers, Users, or third parties;
7. A third-party provider requires suspension;
8. The workspace is inactive for an extended period and required fees are unpaid.

Where reasonable, ABS may provide notice and an opportunity to resolve the issue. However, ABS may act immediately where necessary.

Customers may stop using ABS at any time, but stopping use does not automatically cancel unpaid fees or entitle the Customer to a refund.

24. Data Export and Deletion

Customers may request export of Customer Data, subject to technical feasibility, account standing, data format availability, applicable law, and identity verification.

After termination or expiry, ABS may retain Customer Data for a limited period to allow export, comply with law, resolve disputes, maintain backups, prevent fraud, or enforce agreements. After that period, ABS may delete or anonymise Customer Data.

Deletion from active systems may not immediately remove data from backups, logs, archives, or disaster recovery systems, but such data will remain protected until deleted according to normal retention processes.

The Customer is responsible for exporting needed records before cancellation, termination, or deletion.

25. Intellectual Property

ABS and its licensors own all rights, title, and interest in and to the ABS platform, including software, source code, object code, architecture, workflows, designs, user interfaces, trademarks, logos, documentation, templates, reports, algorithms, AI systems, models, infrastructure, databases, know-how, trade secrets, and related intellectual property.

These Terms do not transfer any ABS intellectual property to the Customer or User.

Subject to these Terms and payment of applicable fees, ABS grants the Customer a limited, non-exclusive, non-transferable, revocable license to access and use ABS for its internal business operations.

You must not copy, modify, reproduce, distribute, sell, lease, sublicense, reverse engineer, create derivative works from, or attempt to extract the source code or proprietary technology of ABS unless expressly permitted in writing by ABS.

26. Feedback

If you provide suggestions, ideas, requests, improvements, or feedback about ABS, you grant ABS the right to use that feedback without restriction or compensation. This does not give ABS ownership of your Customer Data.

27. Third-Party Services

ABS may rely on or integrate with Third-Party Services. Your use of Third-Party Services may be subject to separate terms, privacy policies, fees, approvals, limits, and availability.

ABS is not responsible for:

1. Third-party outages;
2. API changes;
3. Provider restrictions;
4. Data processing by third parties outside ABS's control;
5. Fees charged by third parties;
6. Third-party security incidents;
7. Changes to third-party terms;
8. Losses caused by third-party services.

ABS may change, replace, suspend, or remove integrations where necessary.

28. Disclaimers

ABS is provided on an "as is" and "as available" basis to the maximum extent permitted by law.

ABS does not guarantee that:

1. The platform will be uninterrupted or error-free;
2. All defects will be corrected immediately;
3. AI outputs will be accurate or complete;
4. Reports will be suitable for all business decisions;
5. Integrations will always remain available;
6. Messages will always be delivered;
7. Payments will always be successful or instant;
8. Data loss or security incidents will never occur;
9. The platform will meet every Customer requirement.

You are responsible for independent review and verification of business-critical information.

29. Limitation of Liability

To the maximum extent permitted by law, ABS will not be liable for indirect, incidental, special, consequential, exemplary, or punitive damages, including loss of profit, loss of revenue, loss of business opportunity, loss of goodwill, loss of data, business interruption, or cost of substitute services.

To the maximum extent permitted by law, ABS's total liability arising out of or relating to these Terms or the use of ABS will not exceed the amount paid by the Customer to ABS for the affected service during the twelve months immediately before the event giving rise to the claim.

Nothing in these Terms excludes liability that cannot be excluded under applicable law.

30. Indemnity

You agree to indemnify and hold harmless ABS, its directors, employees, contractors, affiliates, agents, and service providers from and against claims, losses, damages, liabilities, penalties, costs, and expenses arising from:

1. Your breach of these Terms;
2. Your misuse of ABS;
3. Your Customer Data;
4. Your violation of law or third-party rights;
5. Your messages, automations, or communications;
6. Your payment, payroll, tax, accounting, or employment activities;
7. Your use of Third-Party Services;
8. Unauthorised activity caused by your Users, credentials, settings, or integrations.

31. Changes to Terms

ABS may update these Terms from time to time. We may notify Customers through the platform, email, website notice, invoice notice, or other reasonable means.

Updated Terms will take effect on the effective date stated in the updated version. Continued use of ABS after the updated Terms take effect means you accept the changes.

If a change materially affects your rights or obligations, we will use reasonable efforts to provide advance notice where practical.

32. Changes to Pricing and Plans

ABS may update pricing, plan names, limits, included features, Cloud Infrastructure Plan fees, storage fees, support terms, and usage limits from time to time.

Pricing changes will not retroactively change a fully paid one-time Enterprise License for the selected workspace and tier. However, annual Cloud Infrastructure Plan fees, additional storage, support, third-party costs, integrations, and optional add-ons may change for future renewal periods.

Where possible, ABS will provide reasonable notice before renewal price changes take effect.

33. Assignment

You may not assign or transfer your rights or obligations under these Terms without ABS's prior written consent.

ABS may assign or transfer these Terms in connection with a merger, acquisition, restructuring, sale of assets, financing, change of control, or transfer of business operations.

34. Force Majeure

ABS will not be responsible for delay or failure to perform due to events beyond its reasonable control, including natural disasters, internet failures, power outages, labour disputes, government action, war, civil unrest, cyberattacks, provider outages, payment network failures, telecommunications failures, or other force majeure events.

35. Governing Law and Dispute Resolution

These Terms are governed by the laws of the Republic of Ghana.

The parties will first attempt to resolve disputes through good-faith discussions. If a dispute cannot be resolved informally, it may be submitted to the competent courts of Ghana, unless the parties agree in writing to mediation or arbitration.

36. Notices

ABS may send notices by email, in-app notification, dashboard alert, invoice message, website notice, WhatsApp message, or other contact details associated with the Customer's account.

Customers are responsible for keeping contact details accurate and up to date.

37. Contact Information

For questions about these Terms, please contact:

Company Legal Name: iCreations / iCreations Digital Group

Brand Name: ABS

Address: Dagadu Avenue, Accra Ghana

Email: Info@absghana.com

Phone: +233555155972

Website: www.absghana.com